

suant to the Freedom of Information Act, 5 U. S. C. § 552 (1970 ed. and Supp. V), and also seeking injunctive relief against enforcement of the agreement. *Nixon v. Sampson*, *supra*.³ The House passed its version of the Senate bill on December 3, 1974. The final version of S. 4016 was passed on December 9, 1974, and President Ford signed it into law on December 19.

II

The Act

Public Law 93-526 has two Titles. Title I, the challenged Presidential Recordings and Materials Preservation Act, consists of §§ 101 through 106. Title II, the Public Documents Act, amends Chapter 33 of Title 44, United States Code, to add §§ 3315 through 3324 thereto, and establish the National Study Commission on Records and Documents of Federal Officials.

Section 101 (a) of Title I directs that the Administrator of General Services, notwithstanding any other law or agreement or understanding (*e. g.*, the Nixon-Sampson agreement), "shall receive, obtain, or retain, complete possession and control of all original tape recordings of conversations which were recorded or caused to be recorded by any officer or employee of the Federal Government and which—

"(1) involve former President Richard M. Nixon or other individuals who, at the time of the conversation, were employed by the Federal Government;

³ The Court of Appeals for the District of Columbia Circuit stayed any order effectuating the decision in *Nixon v. Sampson* pending decision of the three-judge court whether under §105 (a) the instant case was to "have priority on the docket of [the District] court over other cases," *Nixon v. Richey*, 168 U. S. App. D. C., at 173, 177, 188-190, 513 F. 2d, at 431, 435, 446-448. The three-judge court was of the view that "the central purpose of Congress, in relation to all pending litigation, is to have an early and prior determination of the Act's constitutionality" and therefore did not request dissolution of the stay until entry of judgment. 408 F. Supp., at 333-334, n. 10.